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Court of Appeals
Division III
State of Washington
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No. 39615-1

COURT OF APPEALS, DIVISION III
OF THE STATE OF WASHINGTON

BRENDA ADAMS, et al,
Appellant, Plaintiff

v.

CONFLUENCE HEALTH,
Respondent, Defendant

APPELLANT'S PETITION FOR DISCRETIONARY REVIEW

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I. IDENTITY OF PETITIONERS

The Petitioners are all former employees of Respondent Confluence Health. All brought wrongful discharge claims after having their employment terminated by the Respondent due to their failure to accept injection with one of several experimental vaccines following the issuance of the Governor's vaccine mandate and their assertion of legal exemptions to that mandate.

II. CITATION TO COURT OF APPEALS' DECISION

Division III of the Washington State Court of Appeals filed an unpublished decision in Case No. 39615-1-III on March 7, 2024. Petitioners filed a timely Motion for Reconsideration of that decision, which was denied by an Order Denying motion for Reconsideration filed April 11, 2024.

III. ISSUE PRESENTED FOR REVIEW

The issues presented for review are (1) whether the trial court erred in deciding under CR12(b)(6) that Petitioners failed to state a clear mandate of public policy to support their wrongful discharge claim and (2) whether the trial court and the Court of

Appeals both erred in failing to address the claim of failure to accommodate medical disability.

IV. STATEMENT OF THE CASE

The Petitioners asserted a clear public policy in favor of adult persons having the fundamental right to control their own decisions relating to bodily autonomy and the rendering of their own health care. CP at 252. Petitioners derive this policy from (1) Art. I, Section 7 of the Washington State Constitution (2) *McNabb v. Department of Corrections*, 163 Wn.2d 393, 180 P.3d 1257 (2008) and (3) RCW 70.122.06. Petitions also relied on the specific language of Governor Inslee's August 20, 2021 Proclamation 21-14-1 which exempted employees having a legitimate legal basis for exemption from its terms, specifically its requirement that unvaccinated employees be prohibited from working in a clinical setting. CP 115-116 ("Exemptions from Vaccine Requirement…Workers for …Health Care Providers are not required to get vaccinated…under this Order…if the requirement to do so conflicts with their sincerely held religious

beliefs…In implementing the requirements of this Order…operators of Health Care Settings…[m]ust, to the extent permitted by law, require an individual who receives an accommodation to take COVID-19 safety measures that are consistent with the recommendations of the State Department of Health…) Petitioners further relied on Confluence's specific acknowledgment that many other operators of Health Care settings were not excluding individuals with valid exemptions from working in clinical settings. CP 125-128 ("Yes, there is a variability of exemption and accommodation processes by hospitals and clinics in our region. Some are approving essentially all exemption requests and making accommodations.")

V. ARGUMENT

Governor Jay Inslee's Proclamation 12-14.1 ("Proclamation") specifically provides exceptions to those in Appellants' position "…if they are unable to do so [receive COVID-19 vaccinations] because of a disability or if the

requirements to do so conflicts with their sincerely held religious beliefs, practice, or observance." (CP 111-123)*Proclamation*, paragraph 2.a. Governor Inslee's proclamation did not eliminate personal choice where such was based on bona fide religious grounds.

Two things can be true at once.

One, that it is a clear mandate of public policy that citizens of Washington can exercise their legal right and privilege to make their own health care decisions, including whether to receive the COVID-19 vaccination. RCW 70.122.010 states: "[t]he legislature finds that adult persons have the fundamental right to control the decisions relating to the rendering of their own health care …" Likewise, Washington State Constitution states: "[n]o person shall be disturbed in his private affairs, or his home invaded, without authority of law." Art. I, section 7. Numerous Washington Courts have recognized that personal autonomy is public policy. The Supreme Court, in *Pacheco v. United States*, 200 Wn.2d 171, 515

P.3d 510 (2022) recently affirmed this principle in regard to decision about pregnancies. The Court also recognized the policy in *American Legion Post #149 v. Washington State Department of Health,* 164 Wn.2d 520, 192 P.3d 306 (2008).

And two Governor Inslee's proclamation specifically allowed people such as the Appellants to retain the above statutory and Constitutional protections of public policy to make their own health care decisions by seeking religious or disability exemptions so that they could remain employed consistent with the Proclamation.

The Court of Appeals jumped to the conclusion that the attempt by Petitioners to assert their claim to personal autonomy advocated the breaking of the law. It is incorrect that Appellants were trying to commit criminal acts in seeking religious and disability accommodations. The Appellants were requesting accommodations from Respondent pursuant to the religious and disability exemptions clearly stated in the Proclamation. Respondent violated a clear mandate of public

policy in terminating the Appellants who sought those exemptions.

In other words, resisting the vaccine mandate based on religious or disability grounds and exercising the Appellants personal choice was specifically exempted from the Proclamation. The Appellants were choosing a course not deemed illegal by the Proclamation and were wrongfully terminated as a result.

A. Failure to Accommodate Disability.

Appellants contend the Court has overlooked or misapprehended the law and facts in reaching the conclusion that Appellants were claiming failure to accommodate based on perceived disabilities. Appellants did not appeal the trial court dismissal with prejudice of the disparate impact for perceived disability claims. None of the Appellants arguments for the failure to accommodate cause of action in any way relied on any perceived disability.

Instead, Appellants appealed the trial court's dismissal with prejudice the "failure to accommodate disabilities for those dismissed employees claiming accommodation based on medical exemptions in violation of RCW 49.60.180." *Appellants' Statement of Arrangements dated April 24, 2023*, p. 1-2.

The trial court dismissed without prejudice pursuant to CR 12(b)(6) Appellants' cause of action for failure to accommodate religious beliefs, leaving open the ability for those particular Appellants to refile their Complaint more specifically pleading relevant facts related to each specific Appellants unique factual basis for the cause of action. Judge Huber's letter decision dated March 1, 2023, p. 5. (CP418-323)("*Trial Court's Letter*").

As noted in Appellants' brief dated June 8, 2023, on page 30, the Trial Court's Letter decision failed to address in any way the failure to accommodate cause of action for those employees claiming medical exemptions. Even so, that cause of action was dismissed with prejudice by the Trial Court's Order. That was

the basis for appealing that dismissal with prejudice since it appears to have been done so inadvertently and without any analysis what-so-ever in the Trial Court's Letter.

This Appellate Court relied on a summary judgment case to support the dismissal with prejudice of Appellant's case pursuant to the CR 12(b)(6) motion. That case is *StentinelC3, Inc. v. Hunt,* 181 Wn.2d 127, 140-41, 331 P.3d 40 (2014). Respondent has detailed information in each of the specific Appellants' personnel records and files regarding each and every Appellant who notified Confluence of the applicable disability to begin the interactive process prior to the termination. In other words, had the case not been dismissed via a CR 12(b)(6) Motion, the parties would have exchanged discovery which would have included all of the notices of specific disabilities and related communications which should already be in the possession of the Respondent. After discovery, then the case would be ripe for a decision on summary judgement, not before. At the CR12(b)(6) stage, the Appellants

which had provided specific notice of their disability to Respondent would provide a "sworn declaration that this actually happened in their case." *March 7, 2024 Court of Appeals Division Three Decision,* p. 11.

But, as a result of this Appellate Court's current decision, unlike those Appellants who are still allowed to amend their Complaints to provide more specific facts related to their particular situation in their failure to accommodate religious claims, those Appellants who could prove actual disabilities which legally qualified for reasonable accommodation, are left with no remedy because their cases have been dismissed with prejudice as it currently stands.

"Courts should dismiss a claim under CR 12(b)(6) only if it appears beyond a reasonable doubt that no facts exist that would justify recovery." *Cutier v. Phillips Petroleum Co.*, 124 Wn.2d 749, 755, 881 P.2d 216 (1994); cited by the Court. (CP418-323)(*Trial Court's Letter*, p. 4). A plaintiff's allegations are presumed to be true and courts may also consider

hypothetical facts, even though they are not part of the formal record. *Id.*

Because these facts are not specifically in the record at this stage, consider the following hypothetical scenario. One of the Appellants has a unique and diagnosed disability and obtains a medical doctor's note opining that the Appellant should not get vaccinated for COVID-19 based on that specific disability. That Appellant provided that doctor's note to Respondent prior to termination. Respondent terminated Appellant anyway. If that Appellant were to file a Complaint now against Respondent specifying those particulars, Respondent would claim that matter has already been dismissed with prejudice. Rather than dismissing Appellants' case at the CR 12(b)(6) stage with prejudice, if the Court is still persuaded that the case should be dismissed, the Court should dismiss the cases *without prejudice* instead to provide those Appellants who have notified Respondent of their specific disability pre-termination may correct any alleged defect in their notice pleadings, proceed

through discovery and then, if they still cannot provide a "sworn declaration that this actually happened in their case," then we would agree that the case may be ripe for dismissal with prejudice.

As alluded to above, the Respondent is in no way prejudiced because the Respondent already has in its possession the written records regarding each Appellant who has notified the Respondent of the alleged disability pretermination.

But the Appellants would be prejudiced by such dismissal with prejudice because even though the Appellants provided notice to Respondent of the alleged disability pre-termination, the Respondent would short circuit Respondent's legal affirmative duty to enter the interactive process with that Appellant to seek a potential reasonable accommodation for that disability.

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VI. CONCLUSION

For the reasons discussed above, the Court should grant discretionary review in this matter.

I certify the number of words contained in this document is 1,663.

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CERTIFICATE OF SERVICE

I hereby certify that on this 2nd day of May 2024, I caused to be served via e-service a true and correct copy of ***Appellant's Petition for Discretionary Review*** to:

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